Higher National Diploma in Quantity Surveying

Second Year, Second Semester Examination – 2021

QS22032 – Contract Law II

Instructions for Candidates:
Answer Four questions only.
All questions carry equal marks.

No. of questions : 05
No. of pages : 03
Time :Two hours

Question 01

1. Explain the following terms with respect to Law of Contract? [5 Marks]
   i. Mirror image
   ii. Invitation to treat
2. What are the possible methods of termination of a contract? [5 Marks]
3. Briefly discuss the postal rule with relevant case laws. [5 Marks]
4. What are the remedies for breach of contract? [5 Marks]
5. Briefly explain the meaning of a counteroffer. [5 Marks]

[Total 25 Marks]

Question 02

1. What do you mean by Contract of employment? [5 Marks]
2. Briefly explain the Contract of service and Contract for service. [5 Marks]
3. Ammaya is working in a private company as a permanent accountant. She applied a maternity leave for her Forth Baby confinement. However the management refused her leave application and informed to her she is not entitle to the maternity leave for forth baby. Ammaya is seeking advice from you. Advice to Ammaya? [5 Marks]

4. Identify the sector of the each employee given below and briefly discuss the laws applicable to the each of the following work employee?
    a. Thuvarakan who works as Management Assistant in Department of Motor Traffic.
    b. Lavan who works as Manager in LOLC Finance company.
    c. Ragavan who works as labour in Labokala Tea estate [5 Marks]

5. What is meant by probation period? [5 Marks]

[Total 25 Marks]

Question 03

1. Name the role of a quantity surveyor in Construction industry? [5 Marks]
2. What is meant by the term Duty of care? [5 Marks]
3. Write five methods of procurement? [5 Marks]
4. Explain "two stage Bidding" and "Two envelope bidding"? [5 Marks]
5. What is FIDIC? [5 Marks]

[Total 25 Marks]

Question 04

1. Briefly explain about the Lump-sum contract and Turnkey contract. [5 Marks]
2. Write four types of organizational structure? [5 Marks]
3. What are the forms of departmentalization? [5 Marks]
4. Explain the term of Bid Data sheet ? [5 Marks]
5. Distinguish the term condition from warranty? [5 Marks]

[Total 25 Marks]

Question 05

Write short notes on any five of the following.

1. Trade union
2. Conciliation
3. Tender Notice
4. Procurement planning
5. Strike

[Total 5 X 5 = 25 Marks]